

[1/12] IDENTITY AND CHRONOLOGY

Article 19(1)(a) right-to-know doctrine

- > RTI Act assent: 15 Jun 2005
- > listed institutional provisions immediate; full working provisions: 12 Oct 2005
- > statutory CIC/SIC, not constitutional courts
- > 2019 Amendment + Rules recast service conditions
- > 13 Nov 2025 DPDP s.44(3) substitutes RTI s.8(1)(j)

[2/12] DEFINITIONS AND COVERAGE

s.2(f) information = material in any form + private-body information legally accessible

s.2(j) right = inspect | notes/extracts | certified copies | certified samples | electronic access

s.2(h) public authority:

Constitution | parliamentary/State law | notification/order

+ owned | substantially controlled | substantially financed

+ substantially financed NGO, directly or indirectly

Limits: existing/controlled information only; no fresh opinion, inference or record

Cases: CBSE (held records); Thalappalam (substantial control); DAV College Trust (material finance)

[3/12] PREVENTION AND REQUEST

s.4 records: catalogue/index -> computerise where appropriate -> proactive publication

-> policy facts + reasons -> maximum suo motu disclosure

s.5 PIO decides; APIO receives/forwards (+5 days); assisting officer deemed PIO for contravention

s.6 no reasons; assistance for oral request; transfer within 5 days

s.7: 30 days | life/liberty 48 hours | silence deemed refusal | delayed supply free

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[4/12] ROLE FIREWALL

PIO -> primary access decision

FAA -> senior departmental first appeal

CIC/SIC -> s.18 inquiry + s.19 second appeal + s.20 consequences

High Court/Supreme Court -> constitutional judicial review

NONE may: create records | grant underlying service | prosecute corruption | rewrite exemptions
| exercise general contempt jurisdiction

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[5/12] EXEMPTION AND PARTIAL DISCLOSURE
s.8(1) enumerated protected interests
  -> s.8(2) public-interest-over-harm override, notwithstanding OSA and s.8(1)
  -> s.8(3) 20-year disclosure; clauses (a), (c), (i) continue
s.9 non-State copyright
s.10 sever non-exempt part
s.11 third-party route: notice 5 days -> representation 10 -> decision 40
      procedure, not exemption; objection, not veto
Current s.8(1)(j): "information which relates to personal information"
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[6/12] CIC - SECTIONS 12 TO 14

Chief Information Commissioner + up to 10 Information Commissioners

President <- recommendation: PM (chair) + Lok Sabha LoP/deemed leader

+ Union Cabinet Minister nominated by PM

eminent public life: law | science-tech | social service | management

journalism | mass media | administration-governance

bars: legislature | office of profit | party | business | profession

removal: President; proved misbehaviour/incapacity -> Supreme Court inquiry

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[7/12] SIC - SECTIONS 15 TO 17

State Chief Information Commissioner + up to 10 State Information Commissioners

Governor <- recommendation: CM (chair) + Assembly LoP/deemed leader

- + State Cabinet Minister nominated by CM

same expertise/conflict bars

removal: Governor; proved misbehaviour/incapacity -> Supreme Court inquiry

jurisdiction follows public authority, not applicant residence

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[8/12] 2019 ACT-RULES DISTINCTION

Pre-2019 Act: fixed 5 years + Election-Commission-linked salary/status

2019 Amendment: term/pay/allowances/service conditions delegated to Central prescription

2019 Rules:

- term = 3 years from entry, subject to statutory age 65

- pay = Central Chief Rs 2,50,000; Central IC/State Chief/State IC Rs 2,25,000

Act retains: age ceiling | appointment | reappointment limits | protected removal

IC may become Chief by fresh process; aggregate IC+Chief service ≤ 5 years

[9/12] COMPLAINT VERSUS APPEAL

s.18 complaint: no PIO/application blocked/refusal/delay/unreasonable fee/
 incomplete-misleading-false information/other access matter
-> reasonable-grounds inquiry -> summons/oath/affidavit/records/inspection
-> possible s.20 consequence

X no automatic disclosure order

s.19: first appeal 30 days -> senior officer
 second appeal 90 days -> CIC/SIC
 PIO bears denial burden; decision binding

Case: Chief Information Commissioner v State of Manipur (2011)

[10/12] REMEDIES AND PENALTY

- s.19(8): disclosure + PIO appointment + publication + record reform + training + reporting
+ compensation for applicant loss/detriment + penalty process
- s.20(1): responsible PIO, Rs 250/day, max Rs 25,000
triggers without reasonable cause: refusal | delay | mala fide denial |
knowingly incorrect/incomplete/misleading | destruction | obstruction
hearing + PIO burden to prove reasonable/diligent conduct
- s.20(2): persistent default -> disciplinary recommendation under service rules

[11/12] OVERRIDE, SECURITY, REPORTING
s.22 RTI overrides inconsistent OSA/other law, but RTI's own limits remain
s.23 ordinary proceeding bar; Articles 226/32 review survives
s.24 listed intelligence/security organisations:
 general exclusion
 corruption allegation -> Act applies
 human-rights allegation -> CIC/SIC approval + 45 days
s.25 annual report -> Government -> Parliament/State Legislature
s.26 awareness + disadvantaged-community outreach + PIO training + updated guide

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[12/12] CASES, PERFORMANCE AND ANSWER VERDICT

CBSE (2011): evaluated answer books; no record creation

Girish (2012): personal records under old clause; date-control after 2025

Jayantilal Mistry (2015): no blanket RBI fiduciary secrecy

Subhash Chandra Agarwal (2019): CJI office public authority; balanced disclosure

ADR electoral bonds (2024): voter political-funding information under Art.19(1)(a);
constitutional holding, not new CIC jurisdiction

Performance chain:

advance appointments -> adequate benches/staff -> good records -> reasoned FAA/Commission orders
-> penalty where justified -> compliance tracking -> inclusive offline/digital access

QUALIFIED VERDICT:

binding legal teeth exist; autonomy, capacity, records, privacy balancing and access design
determine whether statutory transparency becomes timely democratic accountability.